



PROGRESS STAFFING

7300 Westown Pkwy Suite 130, West Des Moines, IA 50266
Phone (515) 441-2579 Fax: (515) 221-6471

Staffing Agreement

Progress Staffing, Inc., an Iowa corporation with its principal office located at 7300 Westown Pkwy Suite 130, West Des Moines, IA 50266 ("STAFFING FIRM"), and _____

_____ with its principal office located at _____ ("CLIENT") agree to the terms and conditions set forth in this General Staffing Agreement (the "Agreement").

WHEREAS STAFFING FIRM is engaged in the business of providing workers to perform services for clients on a temporary basis; and

WHEREAS CLIENT desires to engage STAFFING FIRM to provide such services.

In consideration of the mutual covenants, terms and conditions set forth herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties agree as follows:

STAFFING FIRM's Duties and Responsibilities

1. STAFFING FIRM will:

- a. Recruit, screen, interview, and assign its personnel ("Assigned Employees") to perform the type of work described on Exhibit "A" attached hereto for CLIENT, under CLIENT's supervision, at the locations specified on Exhibit "A".
- b. Make sure all DIA requirements are met for the Assigned Employees who perform services at the CLIENT's facility.
- c. Pay Assigned Employees' wages and provide them with the benefits that STAFFING FIRM deems appropriate.
- d. Pay, withhold, and transmit payroll taxes; provide unemployment insurance, general liability insurance, registry bond and workers' compensation insurance in an amount no less than

Progress Staffing, llc

required by law; and handle unemployment and workers' compensation claims involving Assigned Employees.

- e. Ensure Assigned Employees are legally authorized to work in the United States.
- f. Make reasonable efforts to provide a similarly qualified replacement in case an Assigned Employee does not report to work.
- g. Require Assigned Employees to sign agreements as set forth on Exhibit "B" attached hereto acknowledging that they are not entitled to holidays, vacations, disability, insurance, pensions, or retirement plans, or any other benefits offered or provided by CLIENT to its employees.
- h. Require Assigned Employees to sign confidentiality agreements as set forth on Exhibit "C" attached hereto before they begin their assignments to CLIENT.

CLIENT's Duties and Responsibilities

2. CLIENT will:

- a. Properly supervise Assigned Employees performing its work and be responsible for its business operations, products, services, and intellectual property,
- b. Properly supervise, control, and safeguard its premises, processes, and systems; not permit or require Assigned Employees to operate any of CLIENT's vehicles or mobile equipment,
- c. Limit the Assigned Employee's duties to those normally performed by an individual with the Assigned Employee's level of skill, training, and licensure in the CLIENT's facility,
- d. Provide Assigned Employees with a safe work site and provide appropriate information, training, and safety equipment with respect to any hazardous substances or conditions to which they may be exposed while working for the CLIENT.
- e. Not change Assigned Employees' job duties without STAFFING FIRM's express prior written approval.
- f. Exclude Assigned Employees from CLIENT's benefit plans, policies, and practices, and not make any offer or promise relating to Assigned Employees' compensation or benefits; and
- g. Not entrust Assigned Employees with unattended premises, cash, checks, keys, credit cards, merchandise, confidential or trade secret information, negotiable instruments, or other valuables without STAFFING FIRM's express prior written approval or as strictly required by the job description provided to STAFFING FIRM.

Progress Staffing, llc

Direct Placement

3. A Direct Placement is a situation where the STAFFING FIRM is hired by CLIENT as a recruiter to identify and pre-screen a candidate (the "Referee") for a position with the CLIENT, who may then be employed directly by the CLIENT, without regard to the previous relationship of the Referee to the STAFFING FIRM.
4. In case of a Direct Placement, the provisions of article 1(c) of the Agreement do not apply.
5. A Direct Placement is considered successfully completed upon the completion of the first day of the employment of the Referee with the CLIENT, following which the STAFFING FIRM will invoice the CLIENT for an amount equal to the fee specified in Appendix "A."

Payment Terms, Bill Rates, and Fees

6. STAFFING FIRM shall invoice CLIENT for services provided in accordance with this Agreement on a weekly basis at the rates set forth on Exhibit A. Payment is due within thirty (30) days of receiving the invoice. Invoices will be accompanied by Assigned Employees' timesheets. CLIENT is responsible for approving Assigned Employees' timesheets on a weekly basis. CLIENT's signature on the timesheets submitted by Assigned Employees certifies that the hours shown are correct, that the work was performed to CLIENT's satisfaction and that STAFFING FIRM is authorized to bill CLIENT for those hours. If any portion of any invoice is disputed, CLIENT shall pay the undisputed portion as the parties attempt to resolve any disputed amounts.
7. CLIENT acknowledges and agrees that in the event a nonexempt Assigned Employee works more than forty (40) hours in any workweek for CLIENT, that Assigned Employee is entitled to premium payment for overtime compensation as provided by federal law, and as applicable, state and local laws. STAFFING FIRM acknowledges and agrees that it is solely responsible for ensuring all hours worked by Assigned Employees are paid at the legally required rate. CLIENT agrees to pay for any overtime hours worked one and half (1.5) times the applicable rate specified on Exhibit A.
8. STAFFING FIRM will charge CLIENT special rates for premium work performed on a holiday or on a weekend. Work performed by Assigned Employees on **every federal holiday** will be paid at two (2) times the applicable rate on Exhibit A. Work performed by Assigned Employees on weekends will be paid the weekend rates listed in Exhibit A.
9. If CLIENT uses the services of any Assigned Employee as its direct employee, as an independent contractor, or through any person or firm other than STAFFING FIRM during or within six (6) months after the end of any assignment of the Assigned Employee to CLIENT from STAFFING FIRM, CLIENT must notify STAFFING FIRM immediately and (a) continue the Assigned Employee's assignment from STAFFING FIRM until he or she completes one thousand and forty (1,040) consecutive work hours for CLIENT; or (b) pay STAFFING FIRM an additional fee (the "Conversion Fee") in the amount of five hundred (500) times the final hourly billing rate for that Assigned Employee, or twelve thousand five hundred dollars \$ 12,500.00, whichever is greater. However, under option (a) above, the length of

Progress Staffing, llc

the required assignment continuation will be reduced by the Assigned Employee's pre-notice work hours within the previous year for which CLIENT has paid or for which CLIENT has not yet been invoiced.

10. **DELINQUENT PAYMENTS.** Except for invoiced payments that CLIENT has successfully disputed, for each month that any payments due under this Agreement are delinquent ("Delinquent Payments"), CLIENT shall be charged and agrees to pay a late fee equal to one and a half percent (1.5%) of the total Delinquent Payment amount ("Late Fee"). In addition to the Late Fee, all Delinquent Payments shall bear interest at a rate of one and a half percent (1.5%) per month or the highest rate permissible under applicable law. The CLIENT shall also reimburse STAFFING AGENCY for all reasonable costs incurred in collecting any Delinquent Payments, including, without limitation, attorneys' fees. In addition to all other remedies available under this Agreement or at law (which STAFFING AGENCY does not waive by the exercise of any rights hereunder), the STAFFING AGENCY shall be entitled to suspend the provision of any services if the CLIENT fails to pay any undisputed invoiced amounts when due hereunder and such failure continues for [INSERT NUMBER] days following written notice thereof.
11. **CANCELLATION.** In the event of premature termination of any temporary weekly contracts agreement, due to non-performance of Progress Staffing or its contractors, CLIENT will be liable and billed for currently scheduled hours OR a minimum of Forty Hours for a full week, whichever is greater. In the event the CLIENT cancels an Assigned Employee's scheduled shift less than eight (8) hours before the beginning of his or her scheduled shift, the CLIENT will be charged for the full scheduled shift as though the Assigned Employee worked the full scheduled shift at the Assigned Employee's Regular Shift rate in Exhibit A. Cancellations must be communicated to the scheduler by the person in charge of the facility by phone or email to be effective.
12. **Rate Increase.** The parties agree that STAFFING FIRM shall not increase the bill rates as set forth in Exhibit A during the first year of this agreement unless there is an increase in payroll taxes. The parties agree to review rates in nine (9) months and adjust rates no later than fourteen (14) months after the effective date of this agreement unless the parties agree otherwise in writing.
13. In addition to the bill rates specified in Exhibit A of this Agreement, CLIENT will pay STAFFING FIRM the amount of all new or increased labor costs associated with CLIENT's Assigned Employees that STAFFING FIRM is legally required to pay, such as wages, benefits, payroll taxes, social program contributions, or charges linked to benefit levels until the parties agree on new bill rates.
14. CLIENT agrees to notify STAFFING FIRM immediately if any Assigned Employee performs work under a state or federal government contract, and agrees to pay STAFFING FIRM a price differential to reflect the higher wages that may be due any such Assigned Employee by reason of any state or federal requirements or contract specifications.

Progress Staffing, llc

Confidential Information

15. Both parties may receive information that is proprietary or confidential to the other party or its affiliated companies and their clients. Both parties agree to hold such information that is identified as confidential or proprietary by the other party in strict confidence and not to disclose such

Progress Staffing, llc

information to third parties or to use such information for any purpose whatsoever other than the providing of services under this Agreement or as required by law. No knowledge, possession, or use of CLIENT's confidential information will be imputed to STAFFING FIRM as a result of Assigned Employees' access to such information.

Cooperation

16. The parties agree to cooperate fully and to aid the other party in the investigation and resolution of any complaints, claims, actions, or proceedings that may be brought by or that may involve Assigned Employees.

Indemnification and Limitation of Liability

17. STAFFING FIRM will defend, indemnify, and hold harmless CLIENT and its parent, subsidiaries, directors, officers, agents, representatives, and employees from and against all claims, losses, and liabilities (including reasonable attorneys' fees) arising out of or resulting from STAFFING FIRM's material breach of this Agreement or the willful, fraudulent, or grossly negligent acts or omissions of STAFFING FIRM or Assigned Employees.
18. CLIENT will defend, indemnify, and hold harmless STAFFING FIRM and its parent, subsidiaries, directors, officers, agents, representatives, and employees from and against all claims, losses, and liabilities (including reasonable attorneys' fees) arising out of or resulting from CLIENT's material breach of this Agreement; its failure to discharge its duties and responsibilities set forth in Section 2; or the willful, fraudulent, or grossly negligent acts or omissions of CLIENT or CLIENT's officers, employees, or authorized agents.
19. ALL WARRANTIES, CONDITIONS, REPRESENTATIONS, INDEMNITIES AND GUARANTEES, WHETHER EXPRESS OR IMPLIED, ARISING BY LAW, CUSTOM, PRIOR ORAL OR WRITTEN STATEMENTS BY STAFFING FIRM OR OTHERWISE (INCLUDING, BUT NOT LIMITED TO, ANY WARRANTY OF MERCHANT ABILITY OR FITNESS FOR PARTICULAR PURPOSE) ARE HEREBY OVERRIDDEN, EXCLUDED AND DISCLAIMED. STAFFING FIRM MAKES NO ASSURANCE AS TO THE RESULTS OF ITS SERVICES, AND STAFFING FIRM IS TO BE PAID FOR SERVICES RENDERED IRRESPECTIVE OF THE RESULTS OF SUCH SERVICES.
20. LIMITATION OF LIABILITY. NEITHER PARTY SHALL BE LIABLE FOR OR BE REQUIRED TO INDEMNIFY THE OTHER PARTY OR ANY THIRD PARTY FOR ANY LOST PROFIT OR FOR ANY INCIDENTAL, CONSEQUENTIAL, EXEMPLARY, SPECIAL, OR PUNITIVE DAMAGES, THAT ARISE IN CONNECTION WITH THIS AGREEMENT, REGARDLESS OF THE FORM OF ACTION (WHETHER IN CONTRACT, TORT, NEGLIGENCE, STRICT LIABILITY, OR OTHERWISE) AND REGARDLESS OF HOW CHARACTERIZED, EVEN IF SUCH PARTY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.
21. As a condition precedent to indemnification, the party seeking indemnification will inform the other party within two (2) business days after it receives notice of any claim, loss, liability, or demand for

Progress Staffing, llc

which it seeks indemnification from the other party; and the party seeking indemnification will cooperate in the investigation and defense of any such matter.

Miscellaneous

22. Provisions of this Agreement, which by their terms extend beyond the termination or nonrenewal of this Agreement, will remain effective after termination or nonrenewal.
23. No provision of this Agreement may be amended or waived unless agreed to in a writing signed by the parties.
24. In the event any provision of this Agreement is held invalid, illegal, or unenforceable, in whole or in part, the remaining provisions of this Agreement shall not be affected thereby and shall continue to be valid and enforceable.
25. This Agreement and the exhibits attached to it contain the entire understanding between the parties and supersede all prior agreements and understandings relating to the subject matter of the Agreement.
26. The provisions of this Agreement will inure to the benefit of and be binding on the parties and their respective representatives, successors, and assigns.
27. The failure of a party to enforce the provisions of this Agreement will not be interpreted as a waiver of any provision or the right of such party thereafter to enforce each and every provision of this Agreement.
28. CLIENT will not transfer or assign this Agreement without STAFFING FIRM's prior written consent.
29. Any notice or other communication will be deemed to be properly given only when sent via the United States Postal Service or a nationally recognized courier, addressed as shown on the first page of this Agreement.
30. Neither party will be responsible for failure or delay in performance of this Agreement if the failure or delay is due to labor disputes, strikes, fire, riot, war, terrorism, acts of God, or any other causes beyond the control of the nonperforming party.
31. This Agreement shall not be construed more strongly against any party regardless of who was more responsible for its preparation. This Agreement shall be governed by and construed in accordance with the laws of the State of Iowa, without regard to its conflicts-of-laws principles. Any action to collect any sums due under this Agreement may be brought in Polk County, Iowa, and the parties consent to jurisdiction and venue in such County. In any action or proceeding to enforce or construe this Agreement, the prevailing party shall be entitled to recover their actual attorney's fees and

Progress Staffing, llc

costs. Authorized representatives of the parties have executed this Agreement below to express the parties' agreement to its terms.

Term of Agreement

32. This Agreement will be for a term of 12 months from the first date on which both parties have executed it. The Agreement may be terminated by either party upon 15 days' written notice to the other party, except that, if a party becomes bankrupt or insolvent, discontinues operations, or fails to make any payments as required by the Agreement, either party may terminate the agreement upon 72 hours written notice. Unless the Agreement is canceled or a renegotiation notice is sent 30 days prior to the Agreement's expiration date, the Agreement will be renewed automatically upon expiration for an additional 12-month term. Termination of this Agreement shall not be effective with respect to any placed Assigned Employees until their placements are terminated or cease.

[SIGNATURE PAGE FOLLOWS]

Progress Staffing, llc

IN WITNESS WHEREOF, the parties have executed this Agreement as of the dates set forth below.

CLIENT

Signature

Printed Name

Title

Date

STAFFING FIRM

Signature

Printed Name

Title

Date

Progress Staffing, llc RNs and L.P.Ns ADDENDUM

Per Hour Rate Schedule/NO START UP COST

Job Title	REGULAR SHIFT - USD	WEEKEND SHIFT-USD
CNA	50	55
CMA	55	60
LPN	70	75
RN	90	95

Direct Placement Fee: 15 % of the Referee's annual salary.

STAT PAY RATE-USD: \$15 more per hour

COVID-19/HAZZARD PAY RATE-USD: \$20 more an hour per hour
Travel Pay -USD: \$15 more per hour

CLIENT'S LOCATION:

WORK TO BE PERFORMED:

CLIENT

Signature

Printed Name

Title

Date

STAFFING FIRM

Signature

Printed Name

Title

Date